



POLICE DEPARTMENT

December 24, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202308215 (Incident Date: July 4, 2023) regarding Police Officer Matthew Guerido, Tax No. 965737 (PODS No. C-032179)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202308215, pertaining to Police Officer Matthew Guerido. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officer would be detrimental to the Police Department's disciplinary process.

In this matter, Officer Guerido observed an individual standing between two parked vehicles and rolling a marijuana cigarette. Officer Guerido approached the individual and asked him, "just the weed?" He proceeded to frisk the individual's cross-body bag and then gave the individual a generic business card that did not contain his name or shield number. Furthermore, Officer Guerido did not record the interaction, as he did not activate his body-worn camera. After reviewing the available evidence in this matter, the Police Commissioner agrees with the CCRB's substantiation of the alleged misconduct. However, given the totality of the circumstances and Officer Guerido's lack of disciplinary history, the Police Commissioner believes the presumptive penalties should be calculated concurrently rather than consecutively.

Officer Guerido has no formal disciplinary history and no prior substantiated CCRB cases. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to issue a Schedule "B" Command Discipline with the forfeiture of three (3) vacation days for the alleged misconduct. Additionally, Officer Guerido shall

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receive formalized training in stop, question, and frisk procedures.

Sincerely,

A handwritten signature in black ink, appearing to be the letters "INSF" in a stylized, cursive font.

Craig Contrera

Inspector

Executive Officer

Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



MOHAMMAD KHALID
INTERIM CHAIR

December 27, 2024

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. PO Matthew Guerrido, Tax No. 965737
CCRB Disciplinary Case No.: 202308215 (PODS No. C-032179)

Commissioner Tisch:

I am writing in response to the letter from Inspector Craig Contrera, dated December 24, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against Police Officer Guerrido. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Inspector Contrera’s notification.

Inspector Contrera stated that the Police Commissioner agrees with the CCRB’s substantiation of the allegations on this matter but believes that the incident should be resolved with a Command Discipline. Furthermore, the Police Commissioner believes that the presumptive penalties should be calculated concurrently rather than consecutively. The Police Commissioner found that, in this matter, Officer Guerrido observed an individual standing between two parked vehicles and rolling a marijuana cigarette, approached the individual and asked him, “just the weed?”. He then proceeded to first search the individual’s cross-body bag, gave out a generic business card that did not contain his name or shield number, and lastly, did not record the interaction, as he did not activate his body-worn camera.

Given that the Police Commissioner agrees with the CCRB that PO Guerrido violated multiple requirements of the Patrol Guide, it is appropriate that CCRB be allowed to continue with the prosecution of this case. While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against PO Guerrido in this matter.

Respectfully submitted,

Andre Applewhite

Andre Applewhite
Chief Prosecutor
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

December 30, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202308215 (Incident Date: July 4, 2023) regarding Police Officer Matthew Guerrido, Tax No. 965737 (PODS No. C-032179)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated December 27, 2024, regarding the CCRB case involving Police Officer Matthew Guerrido and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Guerrido for the reasons expressed in my December 24, 2024 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs the issuance of a Schedule "B" Command Discipline with the forfeiture of three (3) vacation days for the alleged misconduct. Furthermore, Police Officer Guerrido is directed to receive formalized training in Patrol Guide Procedure 212-11 (Investigative Encounters/Stop, Question and Frisk).

Sincerely,

Craig Contrera
Inspector
Executive Officer
Police Commissioner's Office